FORM NO. 35

[See rule 45]

Appeal to the Joint Commissioner (Appeals) or the Commissioner of Income-tax (Appeals)

Personal information		
	First name	**ARUN**
	Middle name	**DEMO**
	Last name or name of entity	**AGARWAL**
	Permanent Account Number or Aadhaar number	**DEMPA1234Z**
	TAN (if available)	**-**
	Flat / Door / Block number	**-**
	Name of premises / building / village	**Flat 10**
	Road / street / post office	**-**
	Area / locality	**Demo Residency, Training Road, Kolkata**
	Town / city / district	**-**
	State	**West Bengal**
	Country	**India**
	PIN code	**700001**
	Phone number with STD code or mobile number	**0000000000**
	Email address	**arun.demo@example.com**
	May notices or communications be sent by email?	**-**

Order against which appeal is filed		
1	Assessment year or financial year to which appeal relates	**2024-25**
2a	Section and sub-section under which order was passed	**143(3) read with section 144B**
2b	Date of order	**24/09/2026**
2c	Date of service of order or notice of demand	**24/09/2026**
3	Income-tax authority passing the order	**Assessment Unit, Income Tax Department (Faceless Assessment); jurisdictional AO: Demo Ward Kolkata**
4	Other appeal pending for another assessment or financial year?	**-**
4.1a	JCIT(Appeals) / CIT(Appeals) with whom pending	**-**
4.1b	Appeal number and filing date	**-**
4.1c	Assessment year or financial year	**-**
4.1d	Authority passing order	**-**
4.1e	Section and sub-section of order	**-**
4.1f	Date of order	**-**

Appeal details		
5	Section and sub-section under which appeal is preferred	**246A(1)(a)**
6a	Amount of income assessed (Rs.)	**17,00,000**
6b	Total addition to income (Rs.)	**5,00,000**
6c	Total disallowance of loss (Rs.)	**Nil**

Appeal details		
6d	Addition or disallowance of loss disputed (Rs.)	**5,00,000**
6e	Disputed demand (Rs.) - enter Nil in case of loss	**2,02,800**
7a	Penalty as per order (Rs.)	**Nil**
7b	Penalty disputed (Rs.)	**Nil**

Taxes paid		
8	If return filed, tax due on returned income paid in full?	**Yes**
8.1a	Return acknowledgement number	**240731000000001**
8.1b	Date of filing return	**31/07/2024**
8.1c	Total tax paid (Rs.)	**1,79,400**
9	If no return filed, amount equal to advance tax u/s 249(4)(b) paid?	**Not applicable**
9.1	Tax payment - BSR code, date, serial number, amount and total	**0000**
10	Tax deposited u/s 195(1), if relevant - BSR code, date, serial number, amount	**Not applicable**

Statement of facts, grounds and additional evidence

11 Facts of the case in brief (not exceeding 1000 words)

1. The Appellant, ARUN DEMO AGARWAL (PAN DEMPA1234Z), is an individual engaged in the business of trading in office supplies.

2. For Assessment Year 2024-25, the Appellant filed the return of income on 31/07/2024 (Acknowledgement No. 240731000000001) declaring total income of Rs. 12,00,000/-.

3. notice was served in time and all the supporting were provided during assessment

4. The assessment was completed u/s 143(3) read with section 144B vide order dated 24/09/2026 (DIN ITBA/DEMO/AST/2026-27/000001(1)), determining total income at Rs. 17,00,000/-, after making the following addition(s): business expense disallowance - Rs. 5,00,000/-.

5. Consequently, a notice of demand u/s 156 raising demand of Rs. 2,02,800/- was issued, including interest (234B: 46,800).

6. Being aggrieved by the said order, the Appellant prefers this appeal on the grounds stated herein.

11	List of documentary evidence relied upon	**1. Copy of assessment order** **2. Copy of computation sheet issued with the order** **3. Copy of notice of demand u/s 156** **4. Computation of total income filed with the return** **5. 05_Appeal_Fee_Challan_Rs1000.pdf** **6. 06_Fictional_Service_Record.pdf** **7. 08_Fictional_Expense_Evidence.pdf** **8. 09_Fictional_Return_Acknowledgment.pdf**
12	Additional documentary evidence under rule 46A filed?	**-**
12.1	List of such documentary evidence (if Yes)	**na**

13 Grounds of appeal (each ground not exceeding 100 words)

1. On the facts and in the circumstances of the case and in law, the learned Assessing Officer erred in making an addition of Rs. 5,00,000/- on account of 'business expense disallowance' without appreciating the facts and evidence on record; the addition deserves to be deleted.

2. On the facts and in the circumstances of the case and in law, the learned Assessing Officer erred in charging interest u/s 234B. The levy of interest is consequential and the Appellant denies liability for the same.

3. The Appellant craves leave to add, alter, amend, modify or withdraw any of the above grounds on or before the hearing of the appeal.

Appeal filing details		
14	Delay in filing appeal?	**No**

15 Grounds for condonation of delay, if relevant (not exceeding 500 words)

na

16	Appeal fees - BSR code, date, serial number, amount	**Rs. 1,000/- ; BSR code: _000_____ ; Date: __/__/____ ; Challan serial no.: __001___**
17	Address for service of notices	**Flat 10, Demo Residency, Training Road, Kolkata, West Bengal - 700001** **E-mail: arun.demo@example.com**

Form of verification

I, ARUN DEMO AGARWAL, the appellant, do hereby declare that what is stated above is true to the best of my information and belief. It is also certified that no additional evidence other than the evidence stated in row 12.1 above has been filed.

Place: **kolkata**

Date: **05/10/2026**

Signature of the appellant

(ARUN DEMO AGARWAL)